



QMUNi VIII Specialized
Agency: Global
Commision on the Rights
of Prisoners
Chair: Sandra Assaf



SA: Global Commission on the Rights of Prisoners

Letter to Delegates

Dearest delegates,

It is my absolute pleasure to formally welcome you to the Global Commission on Rights of Prisoners (GCRP) committee at the Queen's Model United Nations Invitational of 2022. I wanted to first start off by thanking you for your interest, passion, and engagement in this committee, and I hope you enjoy taking part in it as much as I enjoyed putting it together for you all.

To begin, I would like to personally introduce myself to you all. My name is Sandra Assaf and I am a third year political studies student who is an aspiring lawyer. I have been on the Queen's Model United Nations team for about one year, and I have always had a passion for debate and law. Due to my passion for criminal justice reform, I decided to put it altogether in one committee for you to enjoy as well. I am very excited to chair this committee and share my love for Model United Nations with you all.

As you immerse yourself in this committee, you will have an inside look at the world behind bars, which is an often isolated, hidden and eerie place. As you make your way through debates, you will unravel the many issues within the criminal justice system, and find ways to resolve the issues that criminals face each day. From unfair trials to insufficient and inadequate legal representation to the overrepresentation of minorities in jail, you esteemed delegates will challenge yourselves in a fight for human rights of those who are often forgotten: prisoners.

Across all committee sessions, I will be looking for delegates who exemplify strong collaboration skills, and who are diplomatic, willing to improve, and who can use their critical thinking skills to find new, creative, and modern solutions for the issues presented to them. With this said, the main goal of the end of this committee is to find solutions to these issues. You are expected to prioritize the human rights of those in the prison system, to elevate jail standards in any solution you decide on, and to most of all, try to come to a consensus on how to better our criminal justice system, in the global arena. Now, I wish you all the very best at this year's Queen's Model United Nations Invitational, and I cannot wait to hear from you all very soon.

All the best,

Sandra Assaf

Chair; Global Commission on Rights of Prisoners Committee





SA: Global Commission on the Rights of Prisoners

An Introduction to the World Behind Bars

The world behind bars is often secluded and forgotten. However, despite its isolated and secretive nature; lawyers, advocates and citizens have brought forward the very issues within the system to the public eye, to reform. Especially given the ongoing pandemic, issues regarding the criminal justice system have been escalating, and worsening due to a shortage of staffing, overcrowding in jails, and scarcity of resources. This committee will discuss a handful of issues in the criminal justice system, why change is needed- and fast.



To put it into perspective, imagine this. Did you know that 20,000 people have been falsely accused of a crime due to unfair trials and a lack of proper evidence since the late 80s? (Innocence Project, 2011). Did you also know that while Indigenous peoples make up 3% of Canada's population, that they made up 26% of Canada's jail population in 2015-2016? (Government of Canada, 2019). Did you know that in 118 countries' prisons are operating over 100% of their capacity? (Penal Reform International, 2021). Did you know that in Italy there were 61 inmate suicides in 2020 due to a lack of mental health resources during the pandemic? (Penal Reform International, 2021). These scary statistics give you an inside scoop to the context of this committee, and the life behind bars.

There has been quite a bit of debate on prison reform itself, and the formalities and logistics it entails, which is important knowledge to have in order to receive context on the issue at hand. Debates in the United Nations on prison reform have been circulating, and many propose that there needs to be more discussion surrounding prison reform in countries where there is scarcity in financial resources (UNODC). Often, scholars only discuss prison reform in an idealist mindset, rather than what is currently going on around us and how to effectively make change happen in accordance with reality. Some also bring up the idea that prison reform is expensive and is unnecessary since they are prisoners, but from a human rights standpoint, this is an unfair position to hold. This is essentially where the debate lies.



SA: Global Commission on the Rights of Prisoners

How can we ensure prison reform occurs in places where there is an economic challenge? How can we ensure everyone is heard? While prison reform has mostly been encouraged, the debate of how has been debated. This committee will allow delegates to have a closer look at the challenges in the prison system, and find the solutions to make change happen soon.

The Current Status

So, where are we now?

Protests, sit-ins, and other demonstrations demanding prison reform have been extremely prevalent in recent years on social media, especially during the COVID-19 pandemic. More specifically, in jails across the world, prisoners have left their cells and demanded to be heard and informed of the pandemic (Thompson, 2021). Even demonstrators outside prisons have been staging sit-ins demanding change. People across the world have been fighting for change in the prison system, by fighting for imprisonment to be a last resort and to find alternatives to imprisonment (UNODC, 2015). However, there are some who feel that it does not need changing and that imprisonment should be an automatic option (UNODC, 2015). While this might be the case for some, there is still a majority of people who see problems and want change to happen (UNODC, 2015). This is where our committee stands now. This committee is part of the majority that wants to see a better and more fair prison system. The majority that wants alternatives to avoid overcrowding and to have a better distribution of resources. The majority that wants to rehabilitate inmates rather than see them in prison again. This committee is part of the majority that wants change, and wants it fast.

Even beyond the pandemic and the desire for more medical treatment for inmates, mental health help, proper food and water, fair trials and proper legal representation are still below the standard across the world, and are going down at an alarming rate.

On the outside, many bills, policies, and other attempts have been made to make a stride to reform prisons globally, but many have failed. With this said, prison reform is still currently an idealistic dream, but setbacks have challenged change to actually happen. Regardless of the reasoning, it is clear that inmates are not being heard as much as they should.



SA: Global Commission on the Rights of Prisoners

Currently, prison reform internationally is needed, and needed fast. If change does not happen soon, rehabilitation cannot be possible, violence will soar, and ultimately inmate communities and those around them will continue to suffer.

A Closer Look at the Topics

TOPIC 1: Unfair Criminal Trials

Guilty or not guilty? That is the question. A criminal trial can change everything for an individual. It is the main step in deciding the course of their future. In many countries, the right to a fair trial is written, and prioritized. However, unfair criminal trials are not rare. Whether this be inadequate and expensive legal representation, misuse or tampering of evidence, or even a biased jury, unfair criminal trials are real and they can often accuse someone of a crime when they are completely innocent.



Unfair criminal trials can cause many further issues, like falsely accusing individuals, more human rights violations, and an abuse of power of the government causing distrust between the state and its citizens. While it may seem like a high priority for many across the world to have fair criminal trials, many issues have risen that have challenged it to work in practice.

In some countries, some inmates do not even get a chance to have a trial. In countries like Argentina, some cases involved inmates being held in jail awaiting trial for several years, some as long as 14 years, without a final judgment or the chance to be represented (Morón, 2020). These violations add to the issues of unfair criminal proceedings in the criminal justice system.



SA: Global Commission on the Rights of Prisoners



The negligence in the investigation process and tampering with evidence is yet another way in which criminal proceedings may be deemed unfair. In Japan for instance, many interviews and confessions occur behind closed doors without an attorney, showing how unfair the evidence may be due to miscommunication or suggesting confessions without proper proof (Oi, 2013). As a result, many have confessed to crimes they did not commit due to this added pressure, and many have served sentences in jail even though they were innocent (Oi, 2013). In some countries like China for instance, many were unable to meet with their lawyers and were tortured during interrogations and the proceedings to confess things they did not do (Amnesty International, 2020). These human rights violations show how common unfair trials are and how they impact society and jails themselves specifically.



In this committee session, delegates will have a chance to discuss the likeness of these unfair trials, the impact it has on inmates, and how we can reduce the amount of these trials as much as possible to make a better future for prisoners. Discussing the importance of the right to a fair trial on an international level can be one step further to making our criminal justice systems better for all, at all times.



SA: Global Commision on the Rights of Prisoners



Questions to Consider:

1. What role should the UN play in this issue? Should other organizations have a part to play in making change in this area?
2. How can we make the right to a fair trial an internationally accepted right?
 - a. When this happens, what practices can we put into place to help protect the right to a fair trial?
3. What should happen to those who have had an unfair criminal trial?
 - a. What remedies should be available after one has had an unfair trial?



SA: Global Commission on the Rights of Prisoners

TOPIC 2: Poor Prison Conditions and Services

Of all the issues in the criminal justice system, the most hidden and unknown is the prison conditions and services within the system. Poor prison conditions have been normalized across the world, especially due to a lack of prison resources and the issues involving the pandemic. Due to several reasons, including overcrowding, a lack of funds and priority, and the economic crisis across the world, prisons have not been able to sustain a proper standard of their jails and standards.



Prisons globally have had a lack of education to help inmates rehabilitate properly, and accommodate their many needs. For instance, in Canadian prisons, there are very basic level education programs offered, and there is a need for advanced programs as 54% of incarcerated individuals in Canada have less than grade 10 level education (The John Howard Society of Canada, 2020). With this, there is also a lack of technology in jails, which is often needed for preparing for employment and future education outside of prison, as well as completing education inside of jails, especially in Canada (The John Howard Society of Canada, 2020).

Several prisons across the world also still do not have mental and physical health resources, or not sufficient ones to say the least. Prisoners globally have struggled with mental health crises, especially amidst the unknown of the COVID-19 pandemic. Mental health issues are rising in prison, and the resources are scarce (Penal Reform International, 2022). In Egypt for instance, inmates have been repeatedly denied mental health help as these programs do not exist in the first place (Amnesty International, 2022). Also, recent research shows that “in India, there is only one psychologist or psychiatrist for every 16,503 people in prison, with 21 states not having any prison psychiatrists or psychologists.” (Penal Reform International, 2022). There is



SA: Global Commission on the Rights of Prisoners

even a privatization of healthcare in many prisons across the US, which denies those who cannot afford it any medical treatment and procedures to save their lives (Gottschalk, 2021).

The actual conditions in the prisons also need work, globally. In Texas, inmates lived without air conditioning for several months during the hot summer months in 2022, where many inmates were killed due to the heat, showing how inmates' right to life is often forgotten (McCullough, 2022). Another example of poor prison conditions involves Argentinian jails, which are being overcrowded due to the influx of pre-trial prison stays, which causes issues involving resource distribution and staffing (Morón, 2020). These are just some examples of the issues in the prison system involving prison conditions and services. There are still many to be uncovered, and many to resolve.

You may be wondering: what does this mean for the future of the system? Research shows that with worsening prison conditions comes more violence in and outside the prison world (Butler et. al, 2021). This is why change is needed. In order to better rehabilitate the individual, and to propose a better future for them when they are released, we must have better standards and focus on changing the conditions of prisons globally (Butler et. al, 2021).

This committee will have the opportunity to discuss the many issues involving the distribution of government resources in several countries around the world, the lack of proper mental and physical health services in jails, and the challenges inmates face to rehabilitate properly.





SA: Global Commission on the Rights of Prisoners

Questions to Consider:

1. How can we ensure that enough funding goes to impoverished countries and their jail system?
2. How can we continue to recover from the lingering impacts that the COVID-19 pandemic is having on the prison system, especially in the medical field?
3. How can we ensure that the voices of inmates are heard?

TOPIC 3: Abundance of Minority Representation in Jails

Another major issue in the criminal justice system today is the abundance of minority representation in jails, and the lengthy periods of time they are in jail for minor crimes or no crime at all. Many inmates part of marginalized communities have been accused of crimes, despite making up a small amount of a country's population.

There are even larger implications to the rising number of minorities in jail as well. Not only does it shed light on some of the bias involved in the legal system when these individuals are put in jail, but it also has brought out the mistreatment within the jail system and the severity of the sentences that they have to face. For instance, women in French jails are the minority, and studies show that they face an abundance of gender-based violence from men in the system (Prison Insider, 2021). Even those in England and Wales held in jail until bail awaiting for their trial show higher levels of mental health illness, and there has been a 17% increase in minority representation in jails in remand in these countries (Gidda et. al, 2022). There have also been reports from youth in these systems saying that 34% of 638 youth felt unsafe in the jails in England and Wales because of their race (Grierson, 2019). This shows that while there is also an increase of minorities in the system, the treatment of these minorities is becoming worse.



SA: Global Commission on the Rights of Prisoners



There are many reasons why there is an influx of minorities in jail, and every situation is very different. One is the bias involved in the system, and the false accusations towards minorities. In the US alone, “as of October 2016, there have been 1900 exonerations of the wrongfully accused, 47% of the exonerated were African American” (NAACP, 2022). This statistic alone shows how unfair criminal trials can lead to a disproportionate amount of minority individuals in prisons. Other reasons why there are more minorities in jail globally might include the lack of resources in these communities, over policing in neighborhoods where there is a larger minority population, and many others.



With this said, there has been some reform in several countries, including the United States, to decrease these numbers (The Sentencing Project, 2021). However, it is still important to continue to tackle these situations head on to avoid future conflict and issues.

Delegates will have the chance to explore the various reasons for the increase in minority representation in jails globally, the increase in falsely accused individuals who are part of a minority community, how this impacts other institutions, and how to solve some of the issues involved in the prison system regarding these increases.



SA: Global Commission on the Rights of Prisoners

Questions to Consider:

1. How can we reduce the amount of bias there is in the criminal justice system? How can this help limit the amount of minorities in the system?
2. How do we combat the amount of falsely accused individuals in the criminal justice system?
3. What are some of the impacts that incarceration might have on other communities and institutions (e.g education, policing, etc)?

References

- Butler, P., Strode, B., & Johnson, A. (2021, August 23). *How atrocious prisons conditions make us all less safe*. Brennan Center for Justice. Retrieved September 2, 2022, from <https://www.brennancenter.org/our-work/analysis-opinion/how-atrocious-prisons-conditions-make-us-all-less-safe>
- Criminal justice fact sheet. NAACP. (2021, May 24). Retrieved September 2, 2022, from <https://naACP.org/resources/criminal-justice-fact-sheet>
- France : Femmes en prison et violences de genre. Prison Insider. (n.d.). Retrieved September 2, 2022, from <https://www.prison-insider.com/articles/france-femmes-en-prison-et-violences-de-genre>
- Government of Canada, D. of J. (2019, April 12). *Spotlight on gladue: Challenges, experiences, and possibilities in Canada's criminal justice system*. 2. Statistical Overview on the Overrepresentation of Indigenous Persons in the Canadian Correctional System and Legislative Reforms to Address the Problem. Retrieved August 20, 2022, from <https://www.justice.gc.ca/eng/rp-pr/jr/gladue/p2.html>
- Guardian News and Media. (2019, January 29). *More than half of young people in jail are of BME Background*. The Guardian. Retrieved September 2, 2022, from <https://www.theguardian.com/society/2019/jan/29/more-than-half-young-people-jail-are-of-bme-background>
- Guardian News and Media. (2022, March 17). *Proportion of remand prisoners who are minority ethnic rises 17% in six years*. The Guardian. Retrieved September 2, 2022, from <https://www.theguardian.com/society/2022/mar/17/proportion-of-remand-prisoners-who-are-minority-ethnic-rises-17-in-six-years>
- Health in prison. Penal Reform International. (2021, July 27). Retrieved August 20, 2022, from <https://www.penalreform.org/global-prison-trends-2021/health-in-prison/>
- How many innocent people are in prison? Innocence Project. (2011, December 12). Retrieved August 20, 2022, from <https://innocenceproject.org/how-many-innocent-people-are-in-prison/>

Key messages, facts and figures. Penal Reform International. (2021, July 27). Retrieved August 20, 2022, from <https://www.penalreform.org/global-prison-trends-2021/key-messages-facts-and-figures/>

Lack of education and training in Canadian prisons. The John Howard Society of Canada. (2020, December 7). Retrieved September 2, 2022, from <https://johnhoward.ca/blog/lack-of-education-and-training-in-canadian-prisons/>

McCullough, J. (2022, August 24). *"it's a living hell": Scorching heat in Texas prisons revives air-conditioning debate*. The Texas Tribune. Retrieved September 2, 2022, from <https://www.texastribune.org/2022/08/24/texas-prisons-air-conditioning/>

Mental health. Penal Reform International. (2022, August 24). Retrieved September 2, 2022, from <https://www.penalreform.org/global-prison-trends-2022/mental-health/>

Nellis, A., & Mendel, R. (2021, November 1). *The Color of Justice: Racial and ethnic disparity in state prisons*. The Sentencing Project. Retrieved September 2, 2022, from <https://www.sentencingproject.org/publications/color-of-justice-racial-and-ethnic-disparity-in-state-prisons/>

Oi, M. (2013, January 2). *Japan crime: Why do innocent people confess?* BBC News. Retrieved September 2, 2022, from <https://www.bbc.com/news/magazine-20810572>

Systematic violations of criminal procedural rights in Argentina. OHRH. (n.d.). Retrieved September 2, 2022, from <https://ohrh.law.ox.ac.uk/systematic-violations-of-criminal-procedural-rights-in-argentina/>

Gottschalk, K. *The public health of Private Prison Healthcare*. O'Neill. (2021, July 8). Retrieved September 2, 2022, from <https://oneill.law.georgetown.edu/the-public-health-of-private-prison-healthcare/>

Thompson, H. A. (2021, September 8). *50 years after Attica, prisoners protest brutal conditions*. Time. Retrieved September 2, 2022, from <https://time.com/6094884/attica-anniversary-prisoners-protest/>

UNODC. (2015). *Addressing the global prison crisis* . Retrieved September 2, 2022, from

https://www.unodc.org/documents/justice-and-prison-reform/UNODC_Strategy_on_Addressing_the_Global_Prison_Crisis.pdf

UNODC. *Prison reform and alternatives to imprisonment*. United Nations : Office on Drugs and Crime. Retrieved September 2, 2022, from

<https://www.unodc.org/unodc/en/justice-and-prison-reform/prison-reform-and-alternatives-to-imprisonment.html>